

25STCV03772 25STCV03772

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-09-18

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C529%2C09%2F18%2F2026

Source SHA-256: d0997ac4f3c52bf885611ec988db9de61618dc9528f6541a7625d84cd0e3b500

Case Number: 25STCV03772 Hearing Date: September 18, 2026 Dept: 529

VALINDA BROWN VS JESSE HOWARD

DEFENDANTS' MOTION FOR SUMMARY JUDGMENT

Date

of Hearing: September

18, 2026 Trial Date: February

1, 2027

Department: 529 Case No.: 25STCV03772

Moving

Party: Defendants Jesse Howard

and Jesse L Howard as Trustee of the Howard Jesse Living Trust aka Jesse Howard

Living Trust

Responding Party: Plaintiff

Valinda Brown

BACKGROUND

On February 11, 2025, Plaintiff Valinda

Brown filed a complaint against Defendant Jesse Howard for premises liability.

Plaintiff alleges Defendant negligently maintained their property, causing

Plaintiff to slip and fall while walking down the front entry stairs, leading

to Plaintiff's injuries. Plaintiff amended the complaint to add Defendant Jesse

L. Howard, as Trustee of the Howard Jesse Living Trust aka Jesse Howard Living

Trust.

[TENTATIVE]

RULING

Defendants Jesse Howard and Jesse L Howard as Trustee of the Howard Jesse Living Trust aka Jesse Howard Living Trust's Motion for Summary Judgment or, in the alternative, Summary Adjudication is GRANTED IN PART.

EVIDENTIARY

OBJECTIONS

Plaintiff Valinda Brown requests this court disregard and strike the Supplemental Declaration of Arthur E. Pop, P.E., and the Supplemental Declaration of Jesse Howard submitted in Reply as both present new evidentiary matter and additional material facts that were not presented in Defendants' moving papers or Plaintiffs opposition papers.

The court will disregard any new arguments made in reply.

DISCUSSION

Defendants Jesse Howard and Jesse L Howard as Trustee of the Howard Jesse Living Trust aka Jesse Howard Living Trust move this court for an order granting summary judgment in their favor and against Plaintiff Valinda Brown, or in the alternative, summary adjudication. Defendants make the motion on the grounds that there are no triable issues of material fact with respect to Plaintiff's sole cause of action for premises liability, including Count One for negligence and Count Two for willful failure to warn under Civil Code section 846.

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850, fn. omitted.) "Once the [movant] has met that burden, the burden shifts to the [other party] to show that a triable issue of one or more material facts exists as to that cause of action" (CCP § 437c(p)(2); see Aguilar, supra, 25 Cal.4th at 850.) The party opposing summary judgment "may not rely upon the mere allegations or denials of its pleadings,"

but rather “shall set forth the specific facts showing that a triable issue of material fact exists” (CCP § 437c(p)(2).) A triable issue of material fact exists where “the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (Aguilar, supra, 25 Cal.4th at 850.)

Defendant argues Plaintiff’s claim for premises liability fails for several reasons including (i) no dangerous condition existed; (ii) even if one had existed, Defendants had no notice of it; (iii) Plaintiff cannot show that any condition of the Property caused her fall; and (iv) any count for willful failure to warn under Civil Code § 846 is unsupported. In a claim for premises liability, the elements are the same as those for negligence. (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, citing Ortega v. Kmart Corp. (2001) 26 Cal.4th 1200, 1205.) Accordingly, the plaintiff must prove, “a legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury.” (Beacon Residential Community Assn. v. Skidmore, Owings & Merrill LLP (2014) 59 Cal.4th 568, 573, quoting United States Liab. Ins. Co. v. Haidinger-Hayes, Inc. (1970) 1 Cal.3d 586, 594.)

Dangerous Condition

Defendants argue Plaintiff cannot come forward with substantial evidence – or any evidence – that the front steps posed a dangerous condition. Defendants present the testimony of engineer, Arthur E. Pop, P.E., to support their conclusion that the stairway complied with applicable code requirements for an existing residential stairway. Mr. Pop attests that the front stairway consists of two concrete risers, with tread depths of approximately 12 inches and the riser heights ranged from approximately 7 7/16 inches to 7 5/8 inches, with variation within applicable code tolerances. (Pop Decl. ¶7, Exh. I.) Because the stairway had only two risers, no handrail was required under the California Residential Code, which requires handrails only where a stairway has four or more risers. (Pop Decl. ¶9, Exh. I.) Defendants further argue the condition was also open, obvious, and thoroughly familiar to Plaintiff as she had visited the property many times over the course of a decade and knew that the steps had no handrail. (UMF 6-9.)

In opposition, Plaintiff argues Defendants’ premise that the staircase consists of only two uniform risers is

squarely in dispute. Plaintiff has also retained an expert, Eris J. Barillas, a forensic expert in investigating premises liability. Barillas attests she found three risers – not two – upon inspection and found that the second step is approximately 24 inches wider than the first, creating exposed left and right areas that operate as a substantially different and unguarded elevation transition with a 15-inch drop. (Barillas Decl. ¶¶6, 8.) Barillas also states that as a result of this condition, the steps were non-uniform and created an unexpected walking surface and the camouflaged stair configuration created a dangerous condition. (Barillas Decl. ¶7, 9.) This evidence directly contradicts Defendants' position.

The court finds a triable issue of material fact exists as to whether a dangerous condition existed. Both parties agree that a handrail may not have been required based solely on the number of risers – and the court will grant motion for summary adjudication as to Issue 2 – but there is a triable issue whether the nonuniform side configuration, visual camouflage, or lateral drop off created a substantial risk of injury. The court notes Plaintiff's testimony that she did not know what caused her fall. (UMF 12, 15.) However, the court finds Plaintiff's deposition testimony that she did not know what caused her fall is an expression of uncertainty, not an affirmative denial that the drop-off was the cause. (See *Taylor v. Financial Casualty & Surety, Inc.* (2021) 67 Cal.App.5th 966, 984, holding a deponent's testimony that he did not know whether a company held a valid California bail agent license did not constitute a clear and unequivocal admission contradicting his later declaration that the company was in the business of posting bail bonds.)

Notice

Defendants next argue even if a dangerous condition existed, Defendants had no notice. Liability for a dangerous condition on the premises requires proof that the defendant had either actual notice (express information of a fact) or constructive notice (knowledge imputed by law). (See Civ. Code §18.)

Defendants maintain throughout Defendant Howard's ownership of the Property, he never received a single complaint about the front steps — not from the tenant, not from Plaintiff, and not from anyone else. (Howard Decl. ¶¶6-7.) Defendants also submit the declaration of tenant Haynes to support this contention. (Haynes Decl. ¶¶5-6.) Moreover, Defendants

maintain because the property was subject to annual governmental housing-quality inspections – and passed the most recent inspection – Plaintiff cannot charge Defendants with constructive notice of a stair hazard that a trained government inspector, evaluating that very category, twice certified as passing. (See Foreman Decl. ¶9, Exh. F.)

In opposition, Plaintiffs submit their own declaration by tenant Haynes who testifies she did complain to Defendant Howard about the steps before Plaintiff's accident. She also testifies the declaration submitted by Defendant was not submitted by her. The court notes Defendant does not address this contention head on. Rather, Defendant argues the new Haynes declaration does not establish causation or notice. The court cannot resolve credibility disputes on summary judgment under Code of Civil Procedure section 437c(e). As for constructive notice, Plaintiff argues the permanent nature of the condition independently supports constructive notice and the 'Pass' finding by HUD/LACDA does not demonstrate the inspection did not detect the hazardous nonuniform side configuration.

The court finds a triable issue of material fact. Tenant Haynes declaration that she also fell on the same steps is sufficient to show "substantially same circumstances." (See *Elsworth v. Beech Aircraft Corp.* (1984) 37 Cal.3d 540, 555.)

Causation

Defendants argue they did not cause Plaintiff's injuries. California applies the "substantial factor" test for determining factual causation in premises liability cases. (See *Mayes v. Bryan* (2006) 139 Cal.App.4th 1075, 1092.) Defendants maintain Plaintiff has testified she observed no substance on the step, no liquid or oil on the artificial turf, and no bunching or looseness in the artificial turf; the weather was nice/sunny with no rain; she had no idea what caused her to fall. (UMF 11-15.)

In opposition, Plaintiff argues *Kaney v. Custance* (2022) 74 Cal.App.5th 201, forecloses Defendants' causation argument. In *Kaney*, the court held a "slip-and-fall plaintiff need not remember her fall to recover damages provided the evidence gives rise to a reasonable and probable inference that the defendant's negligence was a substantial contributing factor." (*Kaney*, supra, 74 Cal.App.5th

at p. 217.) In the instant matter, Plaintiff contends she has provided that she reached her foot down from the first step, lost balance, fell leftward, and landed on the adjacent lower concrete area. (Brown Decl. ¶14.) Because her declaration supports a reasonable inference that the nonuniform side drop-off caused her fall, the court finds a triable issue of material fact. (See Exh. I, SROG 7.)

Civil Code §846

Defendants argue to the extent Plaintiff's premises liability cause of action includes a count for willful failure to warn under Civil Code section 846, that theory has no application to these facts.

California Civil Code section 846 grants landowners broad immunity from liability for injuries to persons using their property for recreational purposes, with specific exceptions. Defendants contend Plaintiff was a social guest visiting the tenant at a private residence — she was not engaged in any recreational use of the land within the meaning of the statute. (UMF 53.)

In opposition, Plaintiff contends they are not relying upon Civil Code section 846 to establish liability.

Accordingly, the motion for summary adjudication as to Issue 4 is GRANTED.